

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****JOSE RODRIGUEZ and YOSLIN RODRIGUEZ,****Plaintiff(s),****- against -****THE CITY OF NEW YORK AND POLICE OFFICER
"JOHN DOE",****Defendant(s).****INDEX No.****Date Purchased:**Plaintiffs designate
Bronx County
as the place of trial.
The basis of the venue is
Place of Occurrence.**SUMMONS**Plaintiffs reside at
47-10 Laurel Hill Blvd
Woodside, NY 11377**To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 22, 2013Yours etc.,
KELLY & RUBIN, LLP.Michael F. Rubin, Esq.
Attorneys for Plaintiff(s)
275 Seventh Avenue, Suite 1505
New York, N.Y. 10001
Tel. (212) 691-9393

To: The City of New York
Law Department
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

JOSE RODRIGUEZ and YOSLIN RODRIGUEZ,

VERIFIED COMPLAINT

Plaintiff(s),

INDEX No.

-against-

**THE CITY OF NEW YORK and POLICE OFFICER
"JOHN DOE",**

Defendant(s).

THE PLAINTIFFS, complaining of the defendants by and through their attorneys, Kelly & Rubin, LLP., respectfully shows to this court and alleges:

1. Upon information and belief that all times hereinafter mentioned, the defendant, The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. Upon information and belief, that at all times hereinafter mentioned, the defendant The City of New York, its agents, servants and/or employees operated, maintained and controlled the Police Department of the City of New York, including all the police officers employed thereby.

3. Upon information and belief, that at all times hereinafter mentioned, the defendant, Police Officer "John Doe" whose actual identity is unknown pending discovery, was an employee of the Police Department of the City of New York.

4. Plaintiffs at all relevant times hereinafter, were and still are residents of Queens County, City and State of New York.

5. Upon information and belief, defendant Police Officer Doe arrested the plaintiff on

June 4, 2012 for driving with a suspended license.

6. In fact, on the date in question, the plaintiff's license to operate a motor vehicle in New York State was in full force and effect.

7. That Notice of the Plaintiffs' Claim and Notice of Intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the comptroller of the defendant City of New York on or about the October 10, 2012.

8. That hearings have been held pursuant to §50H of the General Municipal Law of the State of New York.

9. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

10. That this action is commenced within one year and ninety days after the cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION
(MALICIOUS PROSECUTION)
(JOSE RODRIGUEZ)**

11. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs marked above with the same force and effect as if more fully set forth herein.

12. That on or about the 4th day of June 2012 in the County of the Bronx, City and State of New York, the defendants, their agents, servants and/or employees maliciously prosecuted and detained

plaintiff, without any just right or grounds therefor.

13. That the plaintiff was and is wholly innocent of the charges he was alleged by the defendants to have committed, and was forced by the defendants to submit to court proceedings.

14. That defendants, their agents, servants and/or employees falsely and maliciously and without probable cause or provocation charged the plaintiff with a crime and/or continued a prosecution under the Vehicle Traffic Law, to wit: violation of Aggravated Unlicensed Operation of a Motor Vehicle in the Third Degree in violation of VTL 511(1)(a).

15. That the defendants, their agents, servants and/or employees acting in the performance of their employment and within the scope of their authority, submitted false statements and withheld vital information before a Judge of the Criminal Court of the City of New York, in the County of the Bronx.

16. That upon examination, the said charges were falsely and maliciously made. That on September 10, 2012 a Judge of the Criminal Court of the City of New York dismissed all charges at the request of the District Attorney's Office.

17. That the said prosecution and criminal charges and hearings were instituted and procured and continued by the defendants, their agents, servants and/or employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, was with actual malice and was terminated in favor of the plaintiff.

18. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was among other damages, deprived of his liberty for approximately seventeen (17) hours and was subjected to great indignity, humiliation, pain and great distress of mind and was held up to scorn and

ridicule, was injured in his character and reputation, was prevented from attending his usual duties and vocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

19. That by reason of the aforesaid, the plaintiffs have been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorneys fees and such other relief as this court may deem just and proper.

**AS AND FOR A SECOND CAUSE OF ACTION
(42 U.S.C. §1983)**

20. The plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraph marked above with the same force and effect as if more fully set forth herein.

21. That at the time of the commission of the acts alleged hereinabove by the police officers of the City of New York against the person of the plaintiffs, are citizens of the United States.

22. That the acts of defendants as above set forth were performed under color of law in deprivation of plaintiffs rights, privileges and immunities secured to him by the Constitution and laws.

23. That by reason of the foregoing, plaintiffs are entitled to redress and to damages by reason of Section 1983, Title 42 of The Public Health and Welfare Law of the United States.

24. That by reason of the aforesaid, the plaintiffs have been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorneys fees and such other relief as this court may deem just and proper.

AS AND FOR A THIRD CAUSE OF ACTION

25. The plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs marked above with the same force and effect as if fully set forth at length herein.

26. The plaintiff, Yoslin Rodriguez, is the lawful wife of co-plaintiff Jose Rodriguez and as such is entitled to the services, society, companionship, relationship and consortium of her said husband.

27. That as a result of the foregoing, plaintiff, Yoslin Rodriguez, has lost the services of society, companionship, relationship and consortium of her said husband and was and will be otherwise damaged herein.

28. That solely by reason of the foregoing, plaintiff, Yoslin Rodriguez, has been damaged in an amount to be determined at a trial of this action, but believed to be well in excess of the jurisdictional limits of this court.

WHEREFORE, the plaintiffs, demand judgment in an amount to be determined at a trial of this action, but in an amount in excess of the jurisdictional limits of all lower courts, and for such other and further relief as this court deems just and proper, including but not limited to awarding plaintiffs costs and expenses, including attorney's fees, incurred in this action and punitive damages.

DATED: New York, New York
May 22, 2013

KELLY & RUBIN, LLP.

A handwritten signature in black ink, appearing to read 'Michael F. Rubin', written over the firm name.

Michael F. Rubin, Esq.
Attorney for Plaintiff(s)
275 Seventh Avenue, 15th Flr.
New York, New York 10001
Tel. (212) 691-9393

TO: The City of New York Law Department
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

JOSE RODRIGUEZ and YOSLIN RODRIGUEZ,

**ATTORNEY'S
VERIFICATION**

Plaintiff(s),

-against-

**THE CITY OF NEW YORK and POLICE OFFICER
"JOHN DOE",**

Defendant(s).

**STATE OF NEW YORK }
 : ss.
COUNTY OF NEW YORK }**

I, MICHAEL F. RUBIN, the undersigned, am an attorney admitted to practice in the Courts of the State of New York, and say that:

I am the attorney of record for the Plaintiff(s) in the above-entitled action. I have read the annexed Summons and Verified Complaint, know the contents thereof and the same are true, except for those matters stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge is based upon the contents of the file maintained in my offices. The reason I make this affirmation instead of plaintiffs is that plaintiffs do not reside in the county where your affiant maintains his offices.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
May 22, 2013

Yours etc.,
KELLY & RUBIN, LLP.


Michael F. Rubin, Esq.
Attorney for Plaintiff(s)
275 Seventh Avenue, 15th Floor
New York, N.Y. 10001
Tel: (212) 691-9393